

Gift Deed Registration – Required Documents & Process

This document provides a general checklist of the documents and steps commonly required for registering a Gift Deed in India, especially for transfer of property among family members. Requirements may vary depending on state laws and Sub-Registrar Office procedures.

1. Common Documents Required

- Drafted Gift Deed on stamp paper or e-stamp paper.
- Passport-size photographs of Donor and Donee.
- Government-issued ID proof (Aadhaar Card, PAN Card, Passport, Driving Licence, etc.).
- Address proof of both parties.
- PAN card copies for property transactions.
- Original property documents (sale deed, title deed, khata, tax receipts, etc.).
- Encumbrance Certificate (EC) of the property.
- Witness ID proofs and photographs (usually two witnesses are required).
- Proof of relationship for concessional stamp duty benefits, if applicable.

2. Eligibility & Conditions

- The property owner (Donor) must have legal ownership rights.
- The transfer should be voluntary and without monetary consideration.
- The Donee must accept the gift during the lifetime of the Donor.
- Gift Deeds for immovable property must be registered.

3. Registration Process

- Prepare the Gift Deed with complete property and party details.
- Pay applicable stamp duty and registration fees.
- Book an appointment at the local Sub-Registrar Office.
- Donor, Donee, and witnesses visit the office for biometric verification and signatures.
- Registrar verifies documents and completes registration.
- Registered Gift Deed copy is issued after successful registration.

4. Important Notes

- Stamp duty may be lower for transfers between close family members.
- Original documents must be carried during registration.
- State-wise rules and fee structures may differ.
- Once registered, cancellation of a Gift Deed can be legally complex.

5. Typical Charges (Indicative Only)

Item	Approximate Amount
Stamp Duty	Varies by state and relationship
Registration Fee	Usually ■1,000 – ■10,000+
Documentation / Legal Charges	Varies depending on service provider

Disclaimer: This checklist is for general informational purposes only and does not constitute legal advice. Please consult a lawyer, deed writer, or local Sub-Registrar Office for exact requirements applicable to your case.